

The Foreign Contribution (Regulation) Rules, 2011

Source: <https://indiankanoon.org/doc/20690064/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

[0](#)

[, Cited by](#)

[2](#)

[\]](#)

[Union of India - Act](#)

[The Foreign Contribution \(Regulation\) Rules, 2011](#)

[UNION OF INDIA](#)

[India](#)

[The Foreign Contribution \(Regulation\) Rules, 2011](#)

[Rule THE-FOREIGN-CONTRIBUTION-REGULATION-RULES-2011 of 2011](#)

[Published on 29 April 2011](#)

[Commenced on 29 April 2011](#)

[\[This is the version of this document from 29 April 2011.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

[The Foreign Contribution \(Regulation\) Rules, 2011](#)

[Published vide Notification No. G.S.R. 349\(E\), dated the 29th April, 2011](#)

[Last Updated 17th September, 2019](#)

[Ministry of Home Affairs](#)

[G.S.R. 349\(E\). - In exercise of the powers conferred by section 48 of the Foreign Contribution \(Regulation\) Act, 2010 \(42 of 2010](#)

[\), the Central Government hereby makes the following rules, namely : -](#)

[1.](#)

[Short title and commencement.](#)

[\(1\)](#)

[These rules may be called the Foreign Contribution \(Regulation\) Rules, 2011.](#)

(2)

They shall come into force on the date on which the Foreign Contribution (Regulation) Act, 2010 (42 of 2010

) shall come into force.

2.

Definitions.

(1)

In these rules unless the context otherwise requires, -

(a)

"Act" means the Foreign Contribution (Regulation) Act 2010;

(aa)

["bank account" means a bank account in a core banking compliant bank, which is integrated with the Public Financial Management System (PFMS)]

[Inserted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

(b)

"chartered accountant" shall have the meaning assigned to it in clause (b) of sub-section (1) of section 2 of the Chartered Accountants Act, 1949;

(c)

"Form" means a form appended to these rules;

(d)

"section" means section of the Act;

(e)

"year" means the financial year commencing from the 1st day of April and ending on the 31st day of March of the next calendar year;

(2)

Words and expressions used and not defined herein but defined in the Act shall have the meaning assigned to them in the Act.

3.

Guidelines for declaration of an organisation to be of a political nature, not being a political party.

- The Central Government may specify any organisation as organisation of political nature on one or more of the following grounds:-

(i)

organisation having avowed political objectives in its Memorandum of Association or bylaws;

(ii)

any Trade Union whose objectives include activities for promoting political goals;

(iii)

any voluntary action group with objectives of a political nature or which participates in political activities;

(iv)

front or mass organisations like Students Unions, Workers' Unions, Youth Forums and Women's wing of a political party;

(v)

organisation of farmers, workers, students, youth based on caste, community, religion, language or otherwise, which is not directly aligned to any political party, but whose objectives, as stated in the Memorandum of Association, or activities gathered through other material evidence, include steps towards advancement of Political interests of such groups;

(vi)

any organisation, by whatever name called, which habitually engages itself in or employs common methods of political action like 'bandh' or 'hartal', 'rasta roko', 'rail roko' or 'jail bharo' in support of public causes.

4.

Speculative activities.

(1)

The following activities shall be treated as speculative activities:-

(a)

any activity or investment that was an element of risk of appreciation or depreciation of the original investment, linked to market forces, including investment in mutual funds or in shares;

(b)

participation in any scheme that promises high returns like investment in chits or land or similar assets not directly linked to the declared aims and objectives of the organisation or association.

(2)

A debt-based secure investment shall not be treated as speculative investment.

(3)

Every association shall maintain a separate register of investments.

(4)

Every register of investments maintained under sub-rule (3) shall be submitted for audit.

5.

Administrative expenses.

- The following shall constitute administrative expenses:-

(i)

salaries, wages, travel expenses or any remuneration realised by the Members of the Executive Committee or Governing Council of the person;

(ii)

all expenses towards hiring of personnel for management of the activities of the person and salaries, wages or any kind of remuneration paid, including cost of travel, to such personnel;

(iii)

all expenses related to consumables like electricity and water charges, telephone charges, postal charges, repairs to premise(s) from where the organisation or Association is functioning, stationery and printing charges transport and travel charges by the Members of the Executive Committee or Governing Council and expenditure on office equipment;

(iv)

cost of accounting for and administering funds;

(v)

expenses towards running and maintenance of vehicles;

(vi)

cost of writing and filing reports;

(vii)

legal and professional charges; and

(viii)

rent of premises, repairs to premises and expenses on other utilities:

Provided that the expenditure incurred on salaries or remuneration of personnel engaged in training or for collection or analysis of field data of an association primarily engaged in research or training shall not be counted towards administrative expenses:

Provided further that the expenses incurred directly in furtherance of the stated objectives of the welfare oriented organisation shall be excluded from the administrative expenses such as salaries to doctors of hospital, salaries to teachers of school etc.

6.

Intimation of receiving foreign contribution from relatives.

- Any person receiving foreign contribution in excess of one lakh rupees or equivalent thereto in a financial year from any of his relatives shall inform the Central Government [by uploading details electronically online]

[Inserted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

in Form FC-1 within thirty days from the date of receipt of such contribution.

6A.

[When articles gifted for personal use do not amount to foreign contribution.

[Inserted by Notification No. G.S.R. 292(E), dated 12.4.2012 (w.e.f. 29.4.2011).]

- Any article gifted to a person for his personal use whose market value in India on the date of such gift does not exceed [one lakh rupees] shall not be a foreign contribution within the meaning of sub-clause (i) of clause (h) of sub-section (1)

of section (2).]

7.

Receiving foreign hospitality by specified categories of persons.

(1)

Any person belonging to any of the categories specified in section 6 who wishes to avail of foreign hospitality shall apply [electronically online]

[Inserted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

to the Central Government in Form FC-2 for prior permission to accept such foreign hospitality.

(2)

Every application for acceptance of foreign hospitality shall be accompanied by an invitation letter from the host or the host country, as the case may be, and administrative clearance of the Ministry or department concerned in case of visits sponsored by a Ministry or department of the Government.

(3)

The application for grant of permission to accept foreign hospitality must reach the appropriate authority ordinarily two weeks before the proposed date of onward journey.

(4)

In case of emergent medical aid needed on account of sudden illness during a visit abroad, the acceptance of foreign hospitality shall be required to be intimated to the Central Government within [one month]

[Substituted 'sixty days' by Notification No. G.S.R. 659(E), dated 16.9.2019 (w.e.f. 29.4.2011).]

of such receipt giving full details including the source, approximate value in Indian Rupees, and the purpose for which and the manner in which it was utilised.

Provided that no such intimation is required if the value of such hospitality in emergent medical aid is upto one lakh rupees or equivalent thereto.

8.

Action in respect of article, currency or security received in contravention of the Act.

(1)

The Central Government may issue a prohibitory order for contravention of the Act in respect of any article, currency or securities.

(2)

The prohibitory order issued under sub-rule (1) shall be served on the person concerned in the following manner:-

(a)

by delivering or tendering it to that person or to his duly authorised agent; or

(b)

by sending it to him by 'registered post with acknowledgement due' or 'speed post' to the address of his last known place of residence or the place where he carries on, or is known to have last carried on, business or the place where he personally works for gain or is known to have last worked for gain and, in case the person is an organisation or an association, to the last known address of the office of such organisation or association; or

(c)

if it cannot be served in any of the manner aforesaid, by affixing, it on the outer door or some other conspicuous part of the premises in which that person resides or carries on, or is known to have last carried on, business or personally works for gain or is known to have last worked personally for gain and, in case the person is an organisation or an association, on the outer door or some other conspicuous part of the premises in which the office of that organisation or association is located, or is known to have been last located, and the written report whereof should be witnessed by at least two persons.

9.

Application for obtaining 'registration' or 'prior permission' to receive foreign contribution.

(1)

[(a) An application for certificate of registration by a person under sub-section (1) of section 11, for acceptance of foreign contribution shall be made electronically online in Form FC-3A [with an affidavit executed by each office bearer and key functionary and member in Proforma 'AA' appended to these rules]

[Substituted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

and an application for obtaining prior permission by a person under sub-section (2) of section 11, for acceptance of foreign contribution, shall be made electronically online in Form FC-3B [with an affidavit executed by each office bearer and key functionary and member in Proforma 'AA' appended to these rules]

[Inserted by Notification No. G.S.R. 659(E), dated 16.9.2019 (w.e.f. 29.4.2011).]

.]

(b)

[The applicant shall upload the signed or digitally signed application along with scanned documents as specified by the Central Government from time to time;]

[Substituted for clauses (b) and (c) by Notification No. G.S.R. 966(E), dated 14.12.2015 (w.e.f. 29.4.2011).]

(d)

A person seeking registration shall be required to open an exclusive bank account to receive the foreign contribution.

(e)

The person may open one or more accounts in one or more banks for the purpose of utilising the foreign contribution after it has been received and, in all such cases, intimation [electronically online in form [FC-6D]

[Substituted for words 'on plain paper' by Notification No. G.S.R. 966(E), dated 14.12.2015 (w.e.f. 29.4.2011).]

] shall be furnished to the Secretary, Ministry of Home Affairs, New Delhi within fifteen days of the opening of any account.

(2)

[* * *] [[Omitted clauses (a), (b) and (c) '(a) An application under sub-section (2) of section 11 for obtaining prior permission of the Central Government to receive foreign contribution shall be made electronically on-line in Form FC-4 and shall be followed by forwarding the hard copy of the on-line application duly signed by the Chief Functionary of the Association together with the required documents.

(b)

The hard copy of the on-line application shall reach the Central Government within thirty days of filing of the on-line application, failing which the request of the person shall be deemed to have ceased.

(c)

Any person whose request has ceased under clause (b) of sub-rule (2) may prefer a fresh on-line application with the Central Government only after six months from the date of cessation of the previous application.' by Notification No. G.S.R. 966(E), dated 14.12.2015 (w.e.f. 29.4.2011).]]

(d)

A person seeking prior permission under this rule shall be required to open an exclusive bank account for the receipt of foreign contribution.

(e)

person seeking prior permission under this rule may open one or more accounts in one or more banks for the purpose of utilising the foreign contribution after it has been received and in all such cases intimation [electronically online in form [FC-6D]

[Substituted for words 'on plain paper' by Notification No. G.S.R. 966(E), dated 14.12.2015 (w.e.f. 29.4.2011).]

] shall be furnished to the Secretary, Ministry of Home Affairs, New Delhi within fifteen days of the opening of any account.

(3)

No person shall prefer a second application for registration or prior permission within a period of six months after submitting an application either for the grant of prior permission for the same project or for registration.

(4)

(a)

An application made for the grant of prior permission shall be accompanied by a fee of [Rs.3000/- (Three Thousand rupees only)]

[Substituted 'Rs. 1000/- (One Thousand only)' by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

.

(b)

An application made for the grant of the registration shall be accompanied by a fee of [Rs.5000/- (Five Thousand rupees only)]

[Substituted '2000/- (Two Thousand only)' by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

.

(c)

The fee may be revised by the Central Government from time to time.

(d)

The fee, as applicable, shall be remitted by demand draft or banker's cheque in favour of the "Pay and Accounts Officer, Ministry of Home Affairs", payable at New Delhi [or through online electronic payment gateway as specified by the Central Government]

[Inserted by Notification No. G.S.R. 966(E), dated 14.12.2015 (w.e.f. 29.4.2011).]

.

(5)

Notwithstanding anything contained in sub-rules (1) to (4), every application made for registration or prior permission under the Foreign Contribution (Regulation) Act, 1976 (

49 of 1976

) but not disposed of before the date of commencement of these rules shall be deemed to be an application for registration or prior permission, as the case may be, under these rules, subject to the condition that the applicant furnishes the prescribed fees for such registration or prior permission, as the case may be.

10.

Validity of certificate.

- Every certificate or registration granted to a person under the Act shall be valid for a period of five years from the date of its issue.

11.

Maintenance of accounts.

- Every person who has been granted registration or prior permission under section 12 shall maintain a separate set of accounts and records, exclusively, for the foreign contribution received and utilised.

12.

Renewal of registration certificate.

(1)

Every certificate of registration issued to a person shall be liable to be renewed after the expiry of five years from the date of its issue on proper application.

(2)

Every person shall apply [to the Central Government electronically online in Form FC-3C [with an affidavit executed by each office bearer and key functionary and member in Proforma 'AA' appended to these rules]

[Substituted 'to the Central Government in Form FC-3' by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

], six months before the date of expiry of the certificate of registration, for its renewal.

[* * *]

[Omitted sub-rule (3) 'A person implementing an ongoing multi-year project shall apply for renewal twelve months before the date of expiry of the certificate of registration.' by Notification No. G.S.R. 966(E), dated 14.12.2015 (w.e.f. 29.4.2011).]

(4)

An application made for renewal of the certificate of registration shall be accompanied by fee of [Rs.1500/- (One Thousand Five Hundred rupees only)]

[Substituted 'Rs. 500/- (Five Hundred only)' by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

.

(5)

The fee for renewal of the certificate of registration shall be remitted by demand draft or banker's cheque in favour of the "Pay and Accounts Officer, Ministry of Home Affairs", payable at New Delhi [or through online electronic payment gateway as specified by the Central Government]

[Inserted by Notification No. G.S.R. 966(E), dated 14.12.2015 (w.e.f. 29.4.2011).]

.

(6)

In case no application for renewal of registration is received or such application is not accompanied by the requisite fee, the validity of the certificate of registration of such person shall be deemed to have ceased from the date of completion of the period of five years from the date of the grant of registration.

Illustration. - A certificate of registration granted on the 1st January, 2012 shall be valid till the 31st December, 2016. A request for renewal of the registration certificate shall reach the Central Government, accompanied by the requisite fee, by the 30th June, 2016. If no application is received or is not accompanied by the renewal fee, the validity of the registration certificate issued on the 1st January 2012 shall be deemed to have lapsed with effect from the close of the day on 31st December, 2016.

(7)

If the validity of the certificate of registration of a person has ceased in accordance with the provisions of these rules, a fresh request for the grant of a certificate of registration may be made by the person to the Central Government as per the provisions of rule 9.

(8)

In case a person provides sufficient grounds, in writing, explaining the reasons for not submitting the certificate of registration for renewal within the stipulated time, his application may be accepted for consideration along with the requisite fee [and with late fee of Rs.5000/- (Five Thousand rupees only)]

[Inserted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

, but not later than [one year]

[Substituted 'four months' by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

after the expiry of the original certificate of registration.

13.

[Declaration of receipt of foreign contribution.

[Substituted by Notification No. G.S.R. 966(E), dated 14.12.2015 (w.e.f. 29.4.2011).]

(a)

A person who has been granted a certificate of registration or prior permission shall place the audited statement of accounts on receipts and utilisation of the foreign contribution, including income and expenditure statement, receipt and payment account and balance sheet for every financial year beginning on the first day of April within nine months of the closure of the financial year on its official website or on the website as specified by the Central Government.

(b)

A person receiving foreign contribution in a quarter of the financial year shall place details of foreign contribution received on its official website or on the website as specified by the Central Government within fifteen days following the last day of the quarter in which it has been received clearly indicating the details of donors, amount received and date of receipt.]

14.

Extent of amount that can be utilised in case of suspension of the certificate of registration.

- The unspent amount that can be utilised in case of suspension of a certificate of registration may be as under -

(a)

In case the certificate of registration is suspended under sub-section (1) of section 13 of the Act, up to twenty-five per cent of the unutilised amount may be spent, with the prior approval of the Central Government, for the declared aims and objects for which the foreign contribution was received.

(b)

The remaining seventy-five per cent of the unutilised foreign contribution shall be utilised only after revocation of suspension of the certificate of registration.

15.

Custody of foreign contribution in respect of a person whose certificate has been cancelled.

(1)

The amount of foreign contribution lying unutilised in the exclusive foreign contribution bank account of a person whose certificate of registration has been cancelled shall vest with the banking authority concerned till the Central Government issues further directions in the matter.

(2)

If a person whose certificate of registration has been cancelled transfers/has transferred the foreign contribution to any other person, the provisions of sub-rule (1) of this rule shall apply to the person to whom the fund has been transferred.

16.

[Reporting by banks of receipt of foreign contribution.

[Substituted by Notification No. G.S.R. 966(E), dated 14.12.2015 (w.e.f. 29.4.2011).]

- The bank shall report to the Central Government within forty-eight hours any transaction in respect of receipt or utilisation of any foreign contribution by any person whether or not such person is registered or granted prior permission under the Act.]

16. Reporting by banks of receipt of foreign contribution.- (1) Every bank shall send a report to the Central Government within thirty days of any transaction in respect of receipt of foreign contribution by any person who is required to obtain a certificate of registration or prior permission under the Act, but who was not granted such certificate or prior permission as on the date of receipt of such remittance.

(2) The report referred to in sub-rule (1) shall contain the following details: -

(a) Name and address of the donor.

(b) Name and address of the recipient.

(c) Account number.

(d) Name of the Bank and Branch.

(e) Amount of foreign contribution (in foreign currency as well as Indian Rupees).

(f) Date of receipt.

(g) Manner of receipt of foreign contribution (cash/ cheque/ electronic transfer etc.):

(3) The bank shall send a report to the Central Government within thirty days from the date of such last transaction in respect of receipt of any foreign contribution in excess of one crore rupees or equivalent thereto in a single transaction or in transactions within a duration of thirty days, by any person, whether registered or not under the Act and such report shall include the following details:-

(a) Name and address of the donor.

(b) Name and address of the recipient.

(c) Account number.

(d) Name of the Bank and Branch.

(e) Amount of foreign contribution (in foreign currency as well as Indian Rupees).

(f) Date of receipt.

(g) Manner of receipt of foreign contribution (cash/ cheque/ electronic transfer etc.)

17.

Intimation of foreign contribution by the recipient.

- [(1) Every person who receives foreign contribution under the Act, shall submit a signed or digitally signed report electronically online in Form FC-4 with scanned copies of income and expenditure statement, receipt and payment account and balance sheet for every financial year beginning on the 1st day of April within nine months of the closure of the financial year.]

[Substituted by Notification No. G.S.R. 966(E), dated 14.12.2015 (w.e.f. 29.4.2011).]

(2)

The annual return in Form [FC-4]

[Substituted for the figure 'FC-6' by Notification No. G.S.R. 966(E), dated 14.12.2015 (w.e.f. 29.4.2011).]

shall reflect the foreign contribution received in the exclusive bank account and include the details in respect of the funds transferred to other bank accounts for utilisation.

(3)

If the foreign contribution relates only to articles, the intimation shall be submitted in Form [FC-1]

[Substituted for the figure 'FC-7' by Notification No. G.S.R. 966(E), dated 14.12.2015 (w.e.f. 29.4.2011).]

.

(4)

If the foreign contribution relates to foreign securities, the intimation shall be submitted in Form [FC-1]

[Substituted for the figure 'FC-8' by Notification No. G.S.R. 966(E), dated 14.12.2015 (w.e.f. 29.4.2011).]

.

(5)
Every report submitted under sub-rules (2) to (4) shall be duly certified by a chartered accountant.

(6)
Every such return in Form [FC-4]
[Substituted for the figure 'FC-7' by Notification No. G.S.R. 966(E), dated 14.12.2015 (w.e.f. 29.4.2011).]
shall also be accompanied by a copy of statement of account from the bank where the exclusive foreign contribution account is maintained by the person, duly certified by an officer of such bank.

(7)
The accounting statements referred to above in the preceding sub-rule shall be preserved by the person for a period of six years.

(8)
A 'Nil' report shall be furnished even if no foreign contribution is received during a financial year.
[Provided that where foreign contribution has not been received or utilised during a financial year, it shall not be required to enclose certificate from Chartered Accountant or income and expenditure statement or receipt and payment account or balance sheet with Form FC-4.]
[Inserted by Notification No. G.S.R. 966(E), dated 14.12.2015 (w.e.f. 29.4.2011).]

17A.
[Change of designated bank account, name, address, aims, objectives or Key members of the association.
[Inserted by Notification No. G.S.R. 966(E), dated 14.12.2015 (w.e.f. 29.4.2011).]
- A person who has been granted a certificate of registration or prior permission under section 11 of the Act shall intimate electronically online [***], within fifteen days, of any change in the following, namely:-

(i)
name of the association or its address within the State for which registration/ prior permission has been granted under the Act [in Form FC-6A]
[Inserted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

;
(ii)
its nature, aims and objects and registration with local/relevant authorities [in Form FC-6B]
[Inserted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

;
(iii)
bank and/or branch of the bank and/or designated foreign contribution account number [in Form FC-6C]
[Inserted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]
; [***]

[Omitted 'and' by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]
(iiia)
[bank and/or branch of the bank for the purpose of utilising the foreign contribution after it has been received in Form FC-6D; and]
[Inserted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

(iv)
key members of the association if at any point of time such change causes replacement of fifty percent or more of the original key members as reported in the application for grant of registration/ prior permission/ renewal of registration under the Act [in Form FC-6E]
[Inserted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

.]
18.
Foreign contribution received by a candidate for election.
- Foreign contribution received by a candidate for election, referred to in section 21, shall be furnished in Form [FC-1]
[Substituted for the figure 'FC-9' by Notification No. G.S.R. 966(E), dated 14.12.2015 (w.e.f. 29.4.2011).]
within forty-five days from the date on which he is duly nominated as a candidate for election.

19.

Limit to which a judicial officer, not below the rank of an Assistant Sessions Judge may make adjudication or order confiscation.

- An officer referred in clause (b) of sub-section (1) of section 29 may adjudge confiscation in relation to any article or currency seized under section 25, if the value of such article or the amount of such currency seized does not exceed Rs. 10,000,000/- (Ten Lakh only).

20.

Revision.

- An application for revision of an order passed by the competent authority under section 32 of the Act shall be made to the Secretary, Ministry of Home Affairs, Government of India, New Delhi on a plain paper. It shall be accompanied by a fee of Rs. 1000/- (One Thousand only) in the form of a demand draft or a banker's cheque in favour of the "Pay and Accounts Officer, Ministry of Home Affairs", payable at New Delhi.

21.

Compounding of offence.

- An application for the compounding of an offence under section 41 may be made to the Secretary, Ministry of Home Affairs, New Delhi on a plain paper and shall be accompanied by a fee of Rs. 1000/- (One Thousand only) in the form of a demand draft or a banker's cheque in favour of the "Pay and Accounts Officer, Ministry of Home Affairs", payable at New Delhi.

22.

Returns by the Investigating Agency to the Central Government.

- The Central Bureau of Investigation or any other Government investigating agency that conducts any investigation under the Act shall furnish reports to the Central Government on a quarterly basis, indicating the status of each case that was entrusted to it, including information regarding the case number, date of registration, date of filing charge sheet, court before which it has been filed, progress of trial, date of judgment and the conclusion of each case.

23.

Authority to whom an application or intimation to be sent.

- Any information or intimation about political or speculative activities of a person as mentioned in rule 3 or rule 4, shall be furnished to the Secretary to the Government of India in the Ministry of Home Affairs, New Delhi. Such information or intimation shall be sent by registered post.

24.

Procedure for transferring foreign contribution to other registered or unregistered persons.

(1)

Any person intending to transfer the foreign contribution may make an application to the Central Government in Form [FC-5]

[Substituted for the figure 'FC-10' by Notification No. G.S.R. 966(E), dated 14.12.2015 (w.e.f. 29.4.2011).]

.

(2)

The Central Government may permit the transfer in respect of a person who has been granted the certificate of registration or prior permission under section 11 of the Act, in case the recipient person has not been proceeded against under any provision of the Act.

(3)

Any transfer of foreign contribution shall be reflected in the returns in Form [FC-4]

[Substituted for the figure 'FC-6' by Notification No. G.S.R. 966(E), dated 14.12.2015 (w.e.f. 29.4.2011).]

as well as in Form FC-10 by the transferor and the recipient.

(4)

In case the foreign contribution is proposed to be transferred to a person who has not been granted a certificate of registration or prior permission by the Central Government, the person concerned may apply for permission to the Central Government to transfer a part of the foreign contribution, not exceeding ten per cent, of the total value of the foreign contribution received. The application shall be countersigned by the District Magistrate having jurisdiction in the place where the transferred funds are sought to be utilised. The District Magistrate concerned shall take an appropriate decision in the matter within sixty days of the receipt of such request from the person. The donor shall not transfer any foreign contribution until the Central Government has approved the transfer.

[Form FC-1]

[Substituted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

[See rule 6, 17 and 18]

The Secretary to the Government of India,

Ministry of Home Affairs,

Foreigners Division (FCRA Wing)

Major Dhyani Chand National Stadium,

India Gate, New Delhi - 110002

Subject: Intimation to the Central Government of receipt of foreign contribution by way of gift from relative by an individual / Foreign Contribution in the form of Articles/ Securities/ by a candidate for Election [section 21 of the Foreign Contribution (Regulation) Act, 2010 (42 of 2010

):

Sir,

I, as an individual/ association/ company registered under Companies Act 1956/ Companies Act 2013, hereby gives intimation of:

Receipt of foreign contribution by way of gift from relative

Yes/ No

Foreign Contribution (Articles) Account

Yes/ No

Foreign Contribution (Securities) Account

Yes/ No

Receipt of foreign contribution by a candidate for Election

Yes/ No

Part A ? (To be filled by applicant giving intimation of receipt of foreign contribution by way of gift from relative)

1. Name of the recipient in full (in block letters):

2. Date of birth:

3. Name of Father/Spouse:

4. Contact details of the recipient:

(a)

Address:

(b)

Telephone and mobile number with STD code:

(c)

e-mail address:

5. Permanent Account Number (PAN) of the recipient in India:

6. Aadhaar Number of the recipient in India (Optional):

7. Amount of foreign contribution received, if it exceeds one lakh rupees or equivalent in a financial year:

8. Number of the Bank Draft or telegraphic transfer or other communication including the Bank Details:

9. Details of the relative:

(a)

Name:

(b)

Nationality:

(c)

Country of residence:

(d)

e-mail address:

(e)

Passport Number:

(f)

Relationship with the recipient:

Declaration

I hereby declare that the above particulars furnished by me are true and correct.

Place:

Date:

Signature of the applicant

(Name, in block letters)

Part B ? [To be filled by applicant giving intimation about Foreign Contribution (Articles) Account/ Foreign Contribution (Securities) Account]

1. Details of the applicant:

(i)

Name in full:

(ii)

Contact Details:

(a)

Address:

(b)

Official Telephone No.(with STD code):

(c)

Official e-mail address:

(iii)

FCRA Registration/Prior Permission number and date, if any:

(iv)

PAN (Permanent Account Number) of the Association:

(v)

Aadhaar Number of the recipient in India (Optional):

2. Details of articles :

Date

Name of article (s)

Description

Name and address of the person from whom received

Purpose

Quantity

Approximate value (Rs.)

Mode of Utilisation/Disposal (if disposed to whom)

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

3. Details of securities:

Date

Nature of security received

Name and address of the person from whom received

Nominal Value (Rs.)

Market value (Rs.)

Reserve Bank of India permission details

Mode of Utilisation/ Disposal (if disposed to whom)

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)

Declaration

I hereby declare that the above particulars furnished by me are true and correct.

Place:

Date:

Signature of the Applicant

(Name of the applicant in block letters)

Official Seal

Part C ? [To be filled for giving intimation to the Central Government of Receipt of Foreign Contribution received by a candidate for Election section 21 of the Foreign Contribution (Regulation) Act, 2010 (42 of 2010

)]

1. Name in full:
2. Date of Birth:
3. Name of father/spouse:
4. Contact details:

(a)

Address:

(b)

e-mail address:

(c)

telephone and mobile number (with STD Code):

5. Aadhaar Number of the recipient in India (Optional):

6. Date on which duly nominated as a candidate for election to a Legislature and particulars of Legislature: (See section 21 of the Act):

7. Details of foreign contribution received within one hundred and eighty days immediately preceding the date on which duly nominated as a candidate for election:

Foreign contribution received as cash/ article/ securities

Value (Rs.)

Purpose

Donor name, address and e-mail address

Individual Donor Nationality

Relationship with donor

Utilisation details

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)

Declaration

I hereby declare that the above particulars furnished by me are true and correct.

Place:

Date:

Signature of the candidate

(Name, in block letters)

[Form FC-2]

[Substituted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

[See rule 7(1)]

The Secretary to the Government of India,

Ministry of Home Affairs,

Foreigners Division (FCRA Wing)

Major Dhyani Chand National Stadium,

India Gate, New Delhi-110002

Subject: Application for seeking prior permission of the Central Government to accept foreign hospitality.

[Note: For foreign hospitality availed in case of emergent medical aid situation, intimation to be given on plain paper to the Secretary, Ministry of Home Affairs at the address mentioned in FORM FC-2, within sixty days of such receipt of foreign hospitality.]

1. Name in full:

2. Date of Birth:

3. Name of father/husband:

4. PAN Number :

5. Aadhaar Number (Optional):

6. Contact details:

(a)

Address:

(b)

Telephone and mobile number with STD Code:

(c)

e-mail address

7. Passport particulars (if already in possession):

8. Status: - (a) Member of Legislature (b) Office bearer of a political party (c) Judge of Supreme Court/High Court (d) Government servant (e) Employee of a Corporation or any other Body owned or controlled by Government:

9. Details of hospitality proposed to be availed:

Names of cities/ countries for which hospitality

is to be accepted

Duration of stay

From/ To

Purpose of visit

Nature of hospitality to be accepted

Duration of hospitality to be accepted

Approximate expenditure to be incurred on

hospitality (Rs.)

Remarks

In Cash

In kind

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

10. Hospitality availed during the last three years: [Yes/No]

(a)

If yes, details thereof:

Names of cities/countries for which hospitality

was accepted

Duration of stay From/To

Purpose of visit

Nature of hospitality accepted

Duration of hospitality accepted

Approximate expenditure incurred on hospitality

(Rs.)

Whether MHA Permission was granted (Y/N)

Remarks

In Cash

In kind

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

11. Whether acceptance of foreign hospitality was ever denied to the applicant, if yes, details thereof:

12. Particulars of host(s):

Nature of Host - Individual/ organisation

Full Name

Nationality/ Passport Number

Profession

Address

e-mail address

Fixed line telephone Number (with code); Mobile

Number

(1)

(2)

(3)

(4)

(5)

(6)

(7)

13. Nature of connection/relationship with the host and/or foreign source extending the hospitality:

14. Letter from the host regarding the details of hospitality to be extended and Recommendation Letter from the organisation to which the applicant belongs are to be enclosed.

Declaration and Undertaking

I hereby declare that the above particulars furnished by me are true and correct.

Place:

Date:

Signature of the applicant

(Name, in block letters)

[Form FC - 3]

[See rule 9 (1) (a)/ rule 12]

No _____

Date _____

The Secretary to the Government of India,
Ministry of Home Affairs,
Foreigners Division (FCRA Wing)
NDCC-II Building,
Jai Singh Road
New Delhi - 110001

Subject: Application for 'registration'/ 'prior permission'/ 'renewal' under section 11 (1) & (2) / section 16 of the Foreign Contribution (Regulation) Act, 2010 for the acceptance of foreign contribution by an Association having definite cultural, economic, educational, religious or social programme:

Sir,

I _____, as an individual/ Hindu Undivided Family / association / company registered under Companies Act 1956 / Companies Act, 2013, furnish the following details and apply for approval of the Central Government for the acceptance of foreign contribution under sub-section (1) / (2) of section 11/ Section 16 of the Act for

(a) Registration

Yes/No

(b) prior permission

Yes/No

(c) Renewal

Yes/No

1. Details of the applicant/Association:

(a)

Name in full:

(b)

Address:

(c)

Telephone No. of the Association (with STD Code):

(d)

e-mail address of the association

(e)

official Website address, if any:

(f)

Telephone and mobile (with STD code) of the Chief Functionary

2. Details of Registration:

(a)

Name of the Act like Societies Registration Act, 1860, Indian Trust Act, 1882, Companies Act, 1956/ Companies Act, 2013, etc under which the association is registered:

(b)

Number, date and place of Registration:

(self-certified copy of the registration certificate to be enclosed):

(c)

PAN (Permanent Account Number) of the Association:

(d)

FCRA Regn No. and date (in case of renewal) - copy of certificate to be enclosed:

3. Nature of Association:

(a)

religious (b) cultural (c) economic (d) educational (e) social

Note: If a religious Association, state whether (a) Hindu (b) Sikh (c) Muslim (d) Christian (e) Buddhist (f) Others.

4. Main aim(s) and object(s) of the Association

(enclose self-certified copy of relevant pages of the Memorandum of Association and/or the Articles of Association, showing aims and objects of association):

5. (a) Details of the key functionaries of the Association:

Name

Name of father/ spouse

Nationality

Aadhaar Number, if any

Occupation

Designation in the Association

Relationship with other Member(s) of the

Executive Council/ Governing body/ Office bearers

Contact Details: Office Address; Residential

Address; e-mail address;; Landline No.; mobile No.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(b)

If any of the above is a foreigner (including PIO/OCI card holder), details thereof

Name

Date and Place of birth

Passport number

Address in the foreign country

Whether a person of Indian origin

PIO/ OCI Card Number, if any

If resident in India, date from which residing in

India

(1)

(2)

(3)

(4)

(5)

(6)

(7)

6. Amount of fee paid (Rs.):

7. Whether any current Key functionary of the Association has, in the discharge of his/her official functions or private conduct:

(a)

been convicted by any court of law:

(b)

under prosecution for any offence pending against him/her:

(c)

been found guilty of diversion or mis-utilisation of funds of the Association or any other Association in the past:

(d)

has been prohibited from accepting foreign contribution:

(e)

is a current Key functionary of any other association:

(f)

is a current Key functionary of any other association against whom an order under section 13 or 14 of the Foreign Contribution (Regulation) Act, 2010 (

42 of 2010

) has been passed:

Note: If any of the replies to (a) to (f) above is "yes", then full details of the case must be given

8. Whether the applicant Association:

(a)

is a branch / unit / associate of a foreign based organisation or another association already registered or granted prior permission under the Act. If so, name, address of the organization and registration number/ prior permission number and date:

(b)

attracts section 10 of the Act and if so, details of the order passed by the Central Government under section 11(3) of the Act:

(c)

has been directed in terms of section 9 (d) of the Act to seek prior permission by the Central Government. If so, the number and date of the relevant order:

(d)

had earlier been proceeded against as per provision of the Foreign Contribution (Regulation) Act, 1976 (

49 of 1976

)/ Foreign Contribution (Regulation) Act 2010 (

42 of 2010

), if so, the details thereof:

9. (a) Details of designated FC bank account for receipt of Foreign Contribution:

Name of the Bank

Branch Address (with PIN Code)

IFSC Code

Account No.

(1)

(2)

(3)

(4)

9. (b) Details of all utilisation bank accounts for utilisation of Foreign Contribution (To be filled by applicant applying for renewal of registration):

Name of the Bank

Branch Address (with PIN Code)

IFSC Code

Account No.

(1)

(2)

(3)

(4)

10. (i) (a) If granted prior permission in past to receive foreign contribution, number and date of sanction:

(b)

Date of submission of yearly accounts thereof:

(ii)

Whether:

(a)

the Association has received foreign contribution without prior permission in the past. If so, furnish full particulars

(b)

said violation has been condoned/ compounded by the Central Government, if so, the number and date of the relevant order:

(c)

Association has been prohibited from accepting foreign contribution, if so, details thereof

11. Whether:

(i)

the Association had applied for registration under the Foreign Contribution (Regulation) Act, 1976 (

49 of 1976

) / Foreign Contribution (Regulation) Act 2010 (

42 of 2010

) in the past, and if so details thereof,

(ii)

the Association had applied for prior permission under the Foreign Contribution (Regulation) Act, 1976 (

49 of 1976

) / Foreign Contribution (Regulation) Act 2010 (

42 of 2010

) in the past, and if so, details thereof,

(iii)

the Association has close links with any another Association(s), or its unit(s) or branches, which has been,

(a)

refused registration / prior permission :

(b)

prohibited from accepting foreign contribution:

(c)

suspended or whose registration has been cancelled:

(d)

if answer to any of (a) to (c) is yes, please give full particulars.

12. Details of commitment of foreign contribution from donor. (applicable to prior permission cases only):

Nature of the foreign contribution

Value (including name of currency)

Name of the project/ Activity; address of

implementation with brief details of the project and budget

break-up

Purpose (Cultural/ economic/ educational/

religious/ social)

(1)

(2)

(3)

(4)

(A copy of the latest and duly signed commitment letter from the donor to be enclosed)

13. Details of foreign source(s) from which the foreign contribution is proposed to be received (applicable to prior permission cases only):

Name of foreign source

Office Address; official e-mail address

In case of individual donor

(1)

(2)

(3)

Name of father/ spouse

Nationality and Passport no.

Occupation

Yours faithfully,

Signature of the Chief Functionary

[Name of the Chief Functionary in block letters]

(Seal of the Association)

Declaration and Undertaking

(a)

I hereby declare that the information furnished above is true and correct;

And I undertake:

(b)

that the receipt of foreign contribution and its utilisation shall not be violative of any of the provisions of the Foreign Contribution (Regulation) Act, 2010 (

42 of 2010

)/rules, notifications/orders issued there under from time to time;

Place:

Date:

Signature of the Chief Functionary

[Name of the Chief Functionary in block letters]

(Seal of the Organisation/Association)

Note: Applicant seeking registration are also to enclose audited statement of accounts and activity report of the association for the last three years.

[Form FC – 3A]

[Inserted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

[See rule 9 (1) (a)]

No _____

Date _____

Darpan ID*** _____

The Secretary to the Government of India, Ministry of Home Affairs,

Foreigners Division (FCRA Wing)

Major Dhyan Chand National Stadium,

India Gate, New Delhi-110002

***Note: - Furnishing of Darpan ID shall be optional.

Subject: Application for 'registration' under sub-section (1) of section 11 of the Foreign Contribution (Regulation) Act, 2010 (

42 of 2010

) for the acceptance of foreign contribution by an Association having definite cultural, economic, educational, religious or social programme:

Sir,

I _____, as an individual/ Hindu Undivided Family / association / company registered under Companies Act 1956 / Companies Act, 2013, furnish the following details and apply for approval of the Central Government for the acceptance of foreign contribution under sub-section (1) of section 11 of the Act for registration.

1. Expenditure incurred in last 3 years towards activities for which registration applied for [See Section 12(4)(b) of the Act] : (Rs):

2. Details of the applicant/Association:

(a)

Name in full:

(b)

Address:

(c)

Telephone No. of the Association (with STD code):

(d)

e-mail address of the association:

(e)

official Website address, if any:

(f)

Telephone and mobile (with STD code) of the Chief Functionary:

3. Details of registration:

(a)

Name of the Act like Societies Registration Act, 1860, Indian Trust Act, 1882, Companies Act, 1956 / Companies Act, 2013, etc under which the association is registered:

(b)

Number, date and place of Registration:

(self-certified copy of the registration certificate to be enclosed):

(c)

PAN (Permanent Account Number) of the Association:

4. Nature of Association:

(a)

religious (b) cultural (c) economic (d) educational (e) social

Note: If a religious Association, state whether (a) Hindu (b) Sikh (c) Muslim (d) Christian (e) Buddhist (f) Others.

5. Main aim(s) and object(s) of the Association

(enclose self-certified copy of relevant pages of the Memorandum of Association and/or the Articles of Association, showing aims and objects of association):

6. (a) Details of the key functionaries of the Association:

Name

Name of father/ spouse

Nationality

Aadhaar Number*

PAN

Occupation

Designation in the Association

Relationship with other Member(s) of the

Executive Council / Governing body / Office bearers

Contact Details: Office Address; Residential

Address; e-mail address; Landline no.; mobile no.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

*Note: - Furnishing of details of Aadhaar number in column (4) shall be optional.

(b)

If any of the above is a foreigner (including PIO/OCI card holder), details thereof:

Name

Date and Place of birth

Passport number

Address in the foreign country

Whether a person of Indian origin

PIO/OCI Card Number, if any

If resident in India, date from which residing in India

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)

7. Amount of fee paid (Rs.):

8. Whether any current Key functionary of the Association has, in the discharge of his/her official functions or private conduct:

(a)

been convicted by any court of law:

(b)

under prosecution for any offence pending against him/her:

(c)

been found guilty of diversion or mis-utilisation of funds of the Association or any other Association in the past:

(d)

has been prohibited from accepting foreign contribution:

(e)

is a current Key functionary of any other association:

(f)

is a current Key functionary of any other association against whom an order under sections 13 or 14 of the Foreign Contribution (Regulation) Act, 2010 (42 of 2010

) has been passed:

Note: If any of the replies to (a) to (f) above is "yes", then full details of the case must be given.

9. Whether the applicant Association:

(a)

is a branch / unit / associate of a foreign based organisation or another association already registered or granted prior permission under the Act. If so, name, address of the organization and registration number/ prior permission number and date:

(b)

attracts section 10 of the Act and if so, details of the order passed by the Central Government under sub-section (3) of section 11 of the Act:

(c)

has been directed in terms of section 9 (d) of the Act to seek prior permission by the Central Government. If so, the number and date of the relevant order:

(d)

had earlier been proceeded against as per provision of the Foreign Contribution (Regulation) Act, 1976 (49 of 1976

)/ the Foreign Contribution (Regulation) Act, 2010 (42 of 2010

), if so, the details thereof:

10. Details of designated FC bank account for receipt of Foreign Contribution:

Name of the Bank

Branch Address (with PIN code)

e-mail

IFSC Code

Account No.

Date of Opening Account

(1)

(2)

(3)

(4)

(5)

(6)

11. (i) (a) If granted prior permission in past to receive foreign contribution, number and date of sanction:

(b)

Date of submission of yearly accounts thereof:

(ii)

Whether:

(a)

the Association has received foreign contribution without prior permission in the past. If so, furnish full particulars:

(b)

said violation has been condoned/ compounded by the Central Government, if so, the number and date of the relevant order:

(c)

Association has been prohibited from accepting foreign contribution, if so, details thereof:

12. Whether:

(i)

the Association had applied for registration under the Foreign Contribution (Regulation) Act, 1976 (49 of 1976

) / the Foreign Contribution (Regulation) Act, 2010 (

42 of 2010

) in the past, and if so details thereof:

(ii)

the Association had applied for prior permission under the Foreign Contribution (Regulation) Act, 1976 (49 of 1976

) / the Foreign Contribution (Regulation) Act, 2010 (

42 of 2010

) in the past, and if so, details thereof:

(iii)

the Association has close links with any another Association(s), or its unit(s) or branches, which has been:

(a)

refused registration / prior permission:

(b)

prohibited from accepting foreign contribution:

(c)

suspended or whose registration has been cancelled:

(d)

if answer to any of (a) to (c) is yes, please give full particulars:

(iv)

the association was already registered under the Foreign Contribution (Regulation) Act, 2010 and the registration is cancelled/ deemed to have been ceased, if so details thereof:

(a)

Registration No. _____

(b)

Date of Registration _____

(c)

Annual Returns submitted (year-wise):

Yours faithfully, [Name of the Chief Functionary (Chairperson/President/Secretary/CEO/MD) in block letters] (Seal of the Association)

Declaration and Undertaking

(a)

I hereby declare that the information furnished above is true and correct; and

(b)

I undertake that the receipt of foreign contribution and its utilisation shall not be violative of any of the provisions of the Foreign Contribution (Regulation) Act, 2010 (

42 of 2010

) and the rules, notifications or orders issued thereunder from time to time;

(c)

[I hereby certify that the office bearers and key functionaries and members fulfill all the eligibility criteria laid out in sub-section (4) of section 12 of the Foreign Contribution (Regulation) Act, 2010 and an affidavit executed by each office bearer and key functionary and member in Proforma 'AA' is uploaded with this application form.]

[Inserted by Notification No. G.S.R. 659(E), dated 16.9.2019 (w.e.f. 29.4.2011).]

Place:

Date:

[Name of the Chief Functionary(Chairperson/President/Secretary/CEO/MD) in block letters]

(Seal of the Organisation/Association)

Note: Applicants seeking registration are also to enclose audited statement of accounts and activity report of the association for the last three years.

[Form FC – 3B]

[Inserted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

[See rule 9 (1) (a)]

No _____

Date _____

Darpan ID*** _____

The Secretary to the Government of India, Ministry of Home Affairs,

Foreigners Division (FCRA Wing)

Major Dhyani Chand National Stadium,

India Gate, New Delhi-110002

***Note: - Furnishing of Darpan ID shall be optional.

Subject: Application for 'prior permission' under sub-section (2) of section 11 of the Foreign Contribution (Regulation) Act, 2010 (

42 of 2010

) for the acceptance of foreign contribution by an Association having definite cultural, economic, educational, religious or social programme:

Sir,

I _____, as an individual/ Hindu Undivided Family / association / company registered under Companies Act 1956 / Companies Act, 2013, furnish the following details and apply for approval of the Central Government for the acceptance of foreign contribution under sub-section (2) of section 11 of the Act for prior permission.

1. Details of the applicant/Association:

(a)

Name in full:

(b)

Address:

(c)

Telephone No. of the Association (with STD code):

(d)

e-mail address of the association:

(e)

official Website address, if any:

(f)

Telephone and mobile (with STD code) of the Chief Functionary:

2. Details of registration:

(a)

Name of the Act like Societies Registration Act, 1860, Indian Trust Act, 1882, Companies Act, 1956 / Companies Act, 2013, etc under which the association is registered:

(b)

Number, date and place of Registration:

(self-certified copy of the registration certificate to be enclosed):

(c)

PAN (Permanent Account Number) of the Association:

3. Nature of Association:

(a)

religious (b) cultural (c) economic (d) educational (e) social

Note: If a religious Association, state whether (a) Hindu (b) Sikh (c) Muslim (d) Christian (e) Buddhist (f) Others.

4. Main aim(s) and object(s) of the Association

(enclose self-certified copy of relevant pages of the Memorandum of Association and/or the Articles of Association, showing aims and objects of association):

5. (a) Details of the key functionaries of the Association:

Name

Name of father/ spouse

Nationality

Aadhaar Number*

PAN

Occupation

Designation in the Association

Relationship with other Member(s) of the

Executive Council / Governing body / Office bearers

Contact Details: Office Address; Residential

Address; e-mail address; Landline no.; mobile no.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

*Note: - Furnishing of details of Aadhaar number in column (4) shall be optional.

(b)

If any of the above is a foreigner (including PIO/OCI card holder), details thereof:

Name

Date and Place of birth

Passport number

Address in the foreign country

Whether a person of Indian origin

PIO/OCI Card Number, if any

If resident in India, date From which residing in

India

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)

6. Amount of fee paid (Rs.):

7. Whether any current Key functionary of the Association has, in the discharge of his/her official functions or private conduct:

(a)

been convicted by any court of law:

(b)

under prosecution for any offence pending against him/her:

(c)

been found guilty of diversion or mis-utilisation of funds of the Association or any other Association in the past:

(d)

has been prohibited from accepting foreign contribution:

(e)

is a current Key functionary of any other association:

(f)

is a current Key functionary of any other association against whom an order under sections 13 or 14 of the Foreign Contribution (Regulation) Act, 2010 (42 of 2010

) has been passed:

Note: If any of the replies to (a) to (f) above is "yes", then full details of the case must be given:

8. Whether the applicant Association:

(a)

is a branch / unit / associate of a foreign based organisation or another association already registered or granted prior permission under the Act. If so, name, address of the organization and registration number/ prior permission number and date:

(b)

attracts section 10 of the Act and if so, details of the order passed by the Central Government under sub-section (3) of section 11 of the Act:

(c)

has been directed in terms of clause (d) of section 9 of the Act to seek prior permission by the Central Government. If so, the number and date of the relevant order:

(d)

had earlier been proceeded against as per provision of the Foreign Contribution (Regulation) Act, 1976 (49 of 1976

)/ the Foreign Contribution (Regulation) Act, 2010 (42 of 2010

), if so, the details thereof:

9. Details of designated FC bank account for receipt of Foreign Contribution:

Name of the Bank

Branch Address (with PIN code)

e-mail

IFSC Code

Account No.

Date of Opening Account

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)

10. (i) (a) If granted prior permission in past to receive foreign contribution, number and date of sanction:

(b)

Date of submission of yearly accounts thereof:

(ii)

Whether:

(a)

the Association has received foreign contribution without prior permission in the past. If so, furnish full particulars:

(b)

said violation has been condoned/ compounded by the Central Government, if so, the number and date of the relevant order:

(c)

Association has been prohibited from accepting foreign contribution, if so, details thereof:

11. Whether:

(i)

the Association had applied for registration under the Foreign Contribution (Regulation) Act, 1976 (

49 of 1976

) / the Foreign Contribution (Regulation) Act, 2010 (

42 of 2010

) in the past, and if so details thereof:

(ii)

the Association had applied for prior permission under the Foreign Contribution (Regulation) Act, 1976 (

49 of 1976

) / the Foreign Contribution (Regulation) Act, 2010 (

42 of 2010

) in the past, and if so, details thereof:

(iii)

the Association has close links with any another association(s), or its unit(s) or branches, which has been:

(a)

refused registration / prior permission:

(b)

prohibited from accepting foreign contribution:

(c)

suspended or whose registration has been cancelled:

(d)

if answer to any of (a) to (c) is yes, please give full particulars

12. Details of commitment of foreign contribution from donor:

Nature of the foreign contribution

Value (including name of currency)

Name of the project/ Activity; address of

implementation with brief details of the project and budget

break-up

Purpose

(Cultural/economic/educational/religious/social)

(1)

(2)

(3)

(4)

13. Details of foreign source(s) from which the foreign contribution is proposed to be received:

Name of foreign source

Office Address; official e-mail address

In case of individual donor

(1)

(2)

(3)

Name of father/ spouse

Nationality and Passport no.

Occupation

Yours faithfully,

[Name of the Chief Functionary

(Chairperson/President/Secretary/CEO/MD) in block letters]

(Seal of the Association)

Declaration and Undertaking

(a)

I hereby, declare that the information furnished above is true and correct; and

(b)

I undertake that the receipt of foreign contribution and its utilisation shall not be violative of any of the provisions of the Foreign Contribution (Regulation) Act, 2010 (

42 of 2010

) and the rules, notifications or orders issued thereunder from time to time.

(c)

[I hereby certify that the office bearers and key functionaries and members fulfill all the eligibility criteria laid out in sub-section (4) of section 12 of the Foreign Contribution (Regulation) Act, 2010 and an affidavit executed by each office bearer and key functionary and member in Proforma 'AA' is uploaded with this application form.]

[Inserted by Notification No. G.S.R. 659(E), dated 16.9.2019 (w.e.f. 29.4.2011).]

Place:

Date:

[Name of the Chief Functionary

(Chairperson/President/Secretary/CEO/MD) in block letters]

(Seal of the Organisation/Association)

Note: Applicant seeking prior permission for foreign contribution for more than Rs.50,00,000/- (Fifty Lakh rupees) shall enclose audited statements of accounts and activity report of the association for the last three years from the date of submission of application.

[Form FC – 3C]

[Inserted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

[See rule 12 (2)]

No _____

Date _____

Darpan ID*** _____

The Secretary to the Government of India, Ministry of Home Affairs,

Foreigners Division (FCRA Wing)

Major Dhyan Chand National Stadium,

India Gate, New Delhi-110002

***Note: - Furnishing of Darpan ID shall be optional.

Subject: Application for 'renewal' under section 16 of the Foreign Contribution (Regulation) Act, 2010 (42 of 2010

) for the acceptance of foreign contribution by an Association having definite cultural, economic, educational, religious or

social programme:

I _____, as an individual/ Hindu Undivided Family / association / company registered under Companies Act 1956 / Companies Act, 2013, furnish the following details and apply for approval of the Central Government for Renewal of registration certificate granted under sub-section (1) of section 11 of the Foreign Contribution (Regulation) Act, 2010 (42 of 2010

).

1. Details of the applicant/Association:

(a)

Name in full:

(b)

Address:

(c)

Telephone No. of the Association (with STD code):

(d)

e-mail address of the association:

(e)

official Website address, if any:

(f)

Telephone and mobile (with STD code) of the Chief Functionary:

2. Details of registration:

(a)

Name of the Act like Societies Registration Act, 1860, Indian Trust Act, 1882, Companies Act, 1956 / Companies Act, 2013, etc under which the association is registered:

(b)

Number, date and place of Registration:

(Self-certified copy of the registration certificate to be enclosed):

(c)

PAN (Permanent Account Number) of the Association:

(d)

Foreign Contribution (Regulation) Act Registration No. and date (in case of renewal) - copy of certificate to be enclosed:

(e)

Amount of Foreign Contribution received during last three financial years: -

Sl. No.

Financial Year

Amount (Rs)

(1)

(2)

(3)

1.

2.

3.

3. Nature of Association:

(a)

religious (b) cultural (c) economic (d) educational (e) social

Note: If a religious Association, state whether (a) Hindu (b) Sikh (c) Muslim (d) Christian (e) Buddhist (f) Others.

4. Main aim(s) and object(s) of the Association:

(enclose self-certified copy of relevant pages of the Memorandum of Association and/or the Articles of Association, showing aims and objects of association):

5. (a) Details of the key functionaries of the Association:

Name

Name of father/ spouse
Nationality
Aadhaar Number*
PAN
Occupation
Designation in the Association
Relationship with other Member(s) of the
Executive Council / Governing body / Office bearers
Contact Details: Office Address; Residential
Address; e-mail address; Landline no.; mobile no.

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)
- (8)
- (9)

*Note: - Furnishing of details of Aadhaar number in column (4) shall be optional.

(b)

If any of the above is a foreigner (including PIO/OCI card holder), details thereof:

Name
Date and Place of birth
Passport number
Address in the foreign country
Whether a person of Indian origin
PIO/OCI Card Number, if any
If resident in India, date From which residing in
India

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)
- (c)

Details of changed Key functionaries on account of addition/ deletion/ removal/ resignation/ death etc., vis-à-vis the original application: -

Name
addition/ deletion/ removal/ resignation/ death
etc.
Effective date
Reasons
Remarks

- (1)
- (2)
- (3)
- (4)
- (5)

6. Amount of fee paid (Rs.):

7. Whether any current Key functionary of the Association has, in the discharge of his/her official functions or private conduct:

(a)

been convicted by any court of law:

(b)

under prosecution for any offence pending against him/her:

(c)

been found guilty of diversion or mis-utilisation of funds of the Association or any other Association in the past:

(d)

has been prohibited from accepting foreign contribution:

(e)

is a current Key functionary of any other association:

(f)

is a current Key functionary of any other association against whom an order under sections 13 or 14 of the Foreign Contribution (Regulation) Act, 2010 (

42 of 2010

) has been passed:

Note: If any of the replies to (a) to (f) above is "yes", then full details of the case shall be given.

8. Whether the applicant Association:

(a)

is a branch / unit / associate of a foreign based organisation or another association already registered or granted prior permission under the Act. If so, name, address of the organization and registration number/ prior permission number and date:

(b)

attracts section 10 of the Act and if so, details of the order passed by the Central Government under sub-section (3) of section 11 of the Act:

(c)

has been directed in terms of clause (d) of section 9 of the Act to seek prior permission by the Central Government. If so, the number and date of the relevant order:

(d)

had earlier been proceeded against as per provision of the Foreign Contribution (Regulation) Act, 1976 (

49 of 1976

)/ the Foreign Contribution (Regulation) Act, 2010 (

42 of 2010

), if so, the details thereof:

9. (a) Details of designated FC bank account for receipt of Foreign Contribution:

Name of the Bank

Branch Address (with PIN code)

e-mail

IFSC Code

Account No.

Date of Opening Account

(1)

(2)

(3)

(4)

(5)

(6)

There is no change in the bank details.

In case of any change, mandatorily intimate by filling FC-6 form.

(b)

Details of all utilisation bank accounts for utilisation of Foreign Contribution (To be filled by applicant applying for renewal of registration):

Name of the Bank

Branch Address (with PIN code)

e-mail

IFSC Code

Account No.

Date of Opening Account

(1)

(2)

(3)

(4)

(5)

(6)

10. (i) (a) If granted prior permission in past to receive foreign contribution, number and date of sanction:

(b)

Date of submission of yearly accounts thereof:

(ii)

Whether:

(a)

the Association has received foreign contribution without prior permission in the past. If so, furnish full particulars:

(b)

said violation has been condoned/ compounded by the Central Government, if so, the number and date of the relevant order:

(c)

the Association has been prohibited from accepting foreign contribution, if so, details thereof:

(d)

the Association has earlier been suspended/cancelled, if so, details thereof:

(e)

the Association has earlier been refused renewal:

11. Whether:

(i)

the Association had applied for registration under the Foreign Contribution (Regulation) Act, 1976 (

49 of 1976

) / the Foreign Contribution (Regulation) Act, 2010 (

42 of 2010

) in the past, and if so details thereof:

(ii)

the Association had applied for prior permission under the Foreign Contribution (Regulation) Act, 1976 (

49 of 1976

) / the Foreign Contribution (Regulation) Act, 2010 (

42 of 2010

) in the past, and if so, details thereof:

(iii)

the Association has close links with any another Association(s), or its unit(s) or branches, which has been:

(a)

refused registration / prior permission:

(b)

prohibited from accepting foreign contribution:

(c)

suspended or whose registration has been cancelled:

(d)

if answer to any of (a) to (c) is yes, please give full particulars:

Yours faithfully,

[Name of the Chief Functionary

(Chairperson/President/Secretary/CEO/MD) in block letters]

(Seal of the Association)

Declaration and Undertaking

(a)

I hereby, declare that the information furnished above is true and correct; and

(b)

I undertake that the receipt of foreign contribution and its utilisation shall not be violative of any of the provisions of the Foreign Contribution (Regulation) Act, 2010 (

42 of 2010

) and the rules, notifications or orders issued thereunder from time to time.

(c)

[I hereby certify that the office bearers and key functionaries and members fulfill all the eligibility criteria laid out in sub-section (4) of section 12 of the Foreign Contribution (Regulation) Act, 2010 and an affidavit executed by each office bearer and key functionary and member in Proforma 'AA' is uploaded with this application form.]

[Inserted by Notification No. G.S.R. 659(E), dated 16.9.2019 (w.e.f. 29.4.2011).]

Place:

Date:

[Name of the Chief Functionary

(Chairperson/President/Secretary/CEO/MD) in block letters]

(Seal of the Organisation/Association)

[Form FC - 4]

[Substituted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

[See rule 17]

The Secretary to the Government of India, Ministry of
Home Affairs,

Foreigners Division (FCRA Wing)

Major Dhyani Chand National Stadium, India Gate, New Delhi-110002

***Note: - Furnishing of Darpan ID shall be optional.

Subject: Account of Foreign Contribution (FC) for the year ending on the 31st March _____

1. FCRA registration/ prior permission number and date:

2. Details of receipt of foreign contribution:

(i)

Foreign Contribution received in cash/ kind (value):

(a)

Brought forward foreign contribution at the beginning of the year (Rs.):

(b)

Income during the year*:

(i)

Interest:

(ii)

Other receipts from projects/activities:

S No.

Name and location of project/ activity

Year of commencement of the project / activity

Income during the year (Rs.)

1

Total

(c)

Foreign Contribution received during the financial year:

(i)

Directly from a foreign source:

(ii)

From a local source:

(d)

Total Foreign Contribution (a+b+c) (Rs.):

* i.e. interest accrued on foreign contribution, or any other income derived from foreign contribution, e.g. sale proceeds from assets created from foreign contribution, or interest thereon during the year, income from projects/activities.

(ii)

(a)

Donor wise detail of foreign contribution received:

Sl. No.

Name of donor(s)

Institutional / Individual

Details of the donor: official Address; email

address; Website address;

Purpose(s) for which received (Social, Cultural,

Educational, Economic, Religious)

Specific Activity/ project

Amount Rs

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(b)

Cumulative purpose-wise amount of all foreign contribution donations received:

3. Details of utilisation of foreign contribution:

(a)

Details of activities/projects for which foreign contribution has been received and utilised (in rupees)

Sl. No.

Name of project/ activity

Address/ Location

Previous balance

Receipt during the year

Utilised

Balance

In cash

In kind

In cash

In kind

In cash

In kind

In cash

In kind

(1)

- (2)
- (3)
- (4)
- (5)
- (6)
- (7)
- (8)
- (9)
- (10)
- (11)
- (b)

Details of utilisation of foreign contribution:

- (i)
Total Utilisation** for projects as per aims and objectives of the association (Rs.):

- (ii)
Total administrative expenses as provided in rule 5 of the Foreign Contribution (Regulation) Rules, 2011 (Rs.):

** It is affirmed that the utilisation of foreign contribution is not in contravention of the provisions contained in the Foreign Contribution (Regulation) Act, 2010 (42 of 2010

) and more particularly in section 9 and section 12 of the Act which, inter-alia, states that the acceptance of foreign contribution is not likely to affect prejudicially:

- (A)
the sovereignty and integrity of India; or
- (B)
the security, strategic, scientific or economic interest of the State; or
- (C)
the public interest; or
- (D)
freedom or fairness of election to any legislature; or
- (E)
friendly relations with any foreign State; or
- (F)
harmony between religious, racial, social, linguistic or regional groups, castes or communities:

- (c)
Total purchase of fresh assets (Rs.)

Sl. No.

Activity in the name of Association

Details

Purpose

Total (in Rs.)

- (i)
Creation of movable assets

- (ii)
Creation of Immovable assets

Total

- (d)
FC transferred to other associations

Sl. No.

Name of the association

Date

Purpose

Amount

(1)

(2)

(3)

(4)

(5)

Total

(e)

Total utilisation in the year (Rs.) (b+c+d):

4. Details of unutilised foreign contribution:

(i)

Total FC invested in term deposits (Rs.):

Sr. No.

Details

Total (in Rs.)

(i)

Opening Balance of FD

(ii)

FD made during the year

(iii)

Less: realisation of previous FD

Closing balance of FD

(ii)

Balance of unutilised foreign contribution, in cash/bank, at the end of the year (Rs):

(a)

Cash in hand:

(b)

in FC designated bank account:

(c)

in utilisation bank account(s):

5. Details of foreigners as Key functionary/working/associated:

6. Details of Land and Buildings remained unutilised for more than two years:

Sl. No.

Location of Land and Building

Year of acquisition

Purpose of acquisition

Reason of unutilisation

(1)

(2)

(3)

(4)

(5)

7. (a) Details of designated FC bank account for receipt of Foreign Contribution (As on 31st March of the year ending):

Name of the Bank

Branch Address (with PIN code)

Phone No.

E-mail

IFSC Code

Account No.

Date of Opening Account

(1)

- (2)
- (3)
- (4)
- (5)
- (6)
- (7)
- (b)

Details of all utilisation bank accounts for utilisation of Foreign Contribution (As on 31st March of the year ending):

Name of the Bank

Branch Address (with PIN code)

Phone No.

E-mail

IFSC Code

Account No.

Date of Opening Account

- (1)
- (2)
- (3)
- (4)
- (5)
- (6)
- (7)

Declaration

I hereby declare that the above particulars furnished by me are true and correct.

I also affirm that the receipt of foreign contribution and its utilisation have not been violative of any of the provisions of the Foreign Contribution (Regulation) Act, 2010 (42 of 2010

), and the rules, notifications or orders issued thereunder from time to time and the foreign contribution was utilised for the purpose(s) for which the association was granted registration/ prior permission by the Central Government.

Place:

Date:

[Name of the Chief Functionary

(Chairperson/President/Secretary/CEO/MD) in block letters]

(Seal of the Association)

Certificate to be given by Chartered Accountant

I/We have audited the account of _____ (name of Association and its full address including State, District and Pin Code, if registered society, its registration number and State of registration) for the financial year ending the 31st March _____ and examined all relevant books and vouchers and certify that according to the audited account:

- (i)
the brought forward foreign contribution at the beginning of the financial year was Rs. _____;
- (ii)
foreign contribution of / worth Rs. _____ was received by the Association during the financial year _____;
- (iii)
interest accrued on foreign contribution and other income derived from foreign contribution or interest thereon of/worth Rs. _____ was received by the Association during the financial year _____;
- (iv)
the balance of unutilised foreign contribution with the Association at the end of the financial year _____ was Rs. _____;
- (v)

Certified that the Association has maintained the accounts of foreign contribution and records relating thereto in the manner specified in section 19 of the Foreign Contribution (Regulation) Act, 2010 (42 of 2010

) read with rule 17 of the Foreign Contribution (Regulation) Rules, 2011.

(vi)

The information in this certificate and in the enclosed Balance Sheet and statement of Receipt and Payment is correct as checked by me/us.

(vii)

The association has utilised the foreign contribution received for the purpose(s) it is registered/ granted prior permission under the Foreign Contribution (Regulation) Act, 2010 (42 of 2010

).

Place:

Date:

Signature of Chartered Accountant

(Seal, Address and Registration number)

[Form FC - 5]

[Substituted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

[See rule 24 (1)]

Darpan ID*** _____

The Secretary to the Government of India, Ministry of Home Affairs,

Foreigners Division (FCRA Wing)

Major Dhyani Chand National Stadium,

India Gate, New Delhi-110002

***Note: - Furnishing of Darpan ID shall be optional.

Subject: Application for seeking permission for transfer of foreign contribution to other un- registered persons.

Sir,

I _____, on behalf of the Association _____ apply for seeking permission of the Central Government under the proviso to Section 7 of Foreign Contribution (Regulation) Act, 2010 (42 of 2010

) for transfer of foreign contribution to other un-registered persons, as per details given below:

1. FCRA registration/ prior permission Number and date of the applicant/ transferor association:

2.

a. Details of the recipient /transferee (in case of association):

(i)

Name in full:

(ii)

Contact Details:

(a)

Address:

(b)

Official Telephone No. of the Association (with STD code):

(c)

Official e-Mail address:

(d)

Telephone and mobile number of the Chief Functionary (with STD code):

(iii)

PAN (Permanent Account Number) of the Association:

(iv)

Darpan ID (Optional):

b. Details of registration of recipient /transferee (in case of association):

(a)

Name of the Act like Societies Registration Act, 1860, Indian Trust Act, 1882, Companies Act, 1956/ Companies Act, 2013, etc., under which the association is registered:

(b)

Registration number, date and place of registration:

(self-certified copy of the registration certificate to be enclosed)

3. Details of registration of recipient /transferee (in case of an individual):

(i)

Name in full:

(ii)

Contact Details:

(a)

Address:

(b)

Official Telephone No. of the individual (with STD code):

(c)

Official e-Mail address:

(d)

Telephone and mobile number of the individual (with STD code):

(iii)

PAN (Permanent Account Number) of the individual:

(iv)

Aadhaar Number (Optional):

4. Amount of Foreign contribution to be transferred:

5. Purpose for the proposed transfer of foreign contribution:

6. Bank details and exclusive FCRA designated account number opened by the recipient, in which FC is proposed to be transferred:

Name of the Bank

Branch Address (with PIN code)

IFSC Code

Account No.

Date of Account Opening

(1)

(2)

(3)

(4)

(5)

I hereby declare that the information furnished above is true and correct.

[Name of the Chief Functionary

(Chairperson/President/Secretary/CEO/MD) in block letters]

(Seal of the Association)

Note: (i) Every application shall be accompanied by a declaration from the transferor Association to the effect that-

(a)

the amount proposed to be transferred during the financial year is less than ten per cent of the total value of the foreign contribution received by him during the financial year;

(b)

the transferor shall not transfer any amount of foreign contribution until the Central Government approves such transfer.

(ii)

Both the transferor and the recipient shall be responsible for ensuring proper utilisation of the foreign contribution so transferred and such transfer of foreign contribution shall be reflected in the returns in Form FC-4 to be submitted by

both the transferor and the recipient.

[Form FC-6]

[See rule 9 and 17A]

The Secretary to the Government of India,
Ministry of Home Affairs,
Foreigners Division (FCRA Wing)
NDCC-II Building, Jai Singh Road
New Delhi - 110001

Subject: Intimation under Rule 9 and Rule 17 A of the Foreign Contribution (Regulation) Rules, 2010 (42 of 2010) to the Central Government regarding Change of designated bank account, Utilisation Account, name/ address/ aims/ objectives/ Key members in respect of the association granted registration/ prior permission under Foreign Contribution (Regulation) Act, 2010:

Sir,

I, as an individual/ association/ company hereby submit the following intimation as required under Rule 17A of the Foreign Contribution (Regulation) Rules, 2011:

Change of name and/ or aims and objects of the association

Yes/ No

Change of address within the State for which registration/
prior permission granted under the above Act

Yes/ No

Change of designated bank/ branch/ bank account number for
receipt and utilisation of foreign contribution

Yes/ No

Opening of Utilisation Bank Account for the purpose of
utilisation of foreign contribution

Yes/ No

Change in more than 50% Key members of the association

Yes/ No

1. FCRA Registration/ Prior Permission number and date of the association:

2. Official telephone number of the association:

3. E-mail address of the association:

4. Telephone/ mobile number of the Chief Functionary of the association:

Part A ? (To be filled by applicant giving intimation regarding Change of name and/ or aims and objects of the association)

(i)

Amended/ changed name of the association as recorded with local/ relevant authority

(ii)

Amended/ changed aims and objects of the association as recorded with local/ relevant authority

(self-certified copy of amendment approved by local/relevant authority to be enclosed)

Part B ? (To be filled by applicant giving intimation regarding Change of address within the same State from which granted registration/ prior permission under FCRA, 2010 Act)

New Address of the association:

Part C ? (To be filled by applicant giving intimation regarding Change of designated bank/ branch of the bank/account number for receipt and utilisation of foreign contribution)

Details of the new designated bank account of the association for receipt and utilisation of foreign contribution

Name of the Bank

Branch Address

IFSC Code

Account No.

(1)

(2)

(3)

(4)

(self-certified copies of letter from the existing bank and the new bank regarding the change to be enclosed)

Part D ? (To be filled by applicant giving intimation of opening of Utilisation Bank Account(s) for the purpose of utilisation of foreign contribution)

Name of the Bank

Branch Address

IFSC Code

Utilisation Account Number

(1)

(2)

(3)

(4)

Part E ? (To be filled by applicant giving intimation regarding change in more than 50% of key members of the association)

Details of all the key members of the association after change in 50 per cent or more of the original key members, as reported in the application for grant of registration/prior permission/renewal of registration of the association under FCRA, 2010:

Name

Name of father/ spouse

Nationality

Aadhaar Number, if any

Occupation

Designation in the Association

Relationship with other Member(s) of the

Executive Council/ Governing body/ Office bearers

Contact Details: Office Address; Residential

Address; email address; Landline No.; mobile No.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

If any of the above is a foreigner (including PIO/OCI card holder), details thereof

Name

Date and Place of birth

Passport number

Address in the foreign country

Whether a person of Indian origin

PIO/ OCI Card Number, if any

If resident in India, date from which residing in

India

(1)

(2)

(3)

(4)

(5)

(6)

(7)

I hereby affirm that the information furnished above is true and correct and

(a)

Change of name and/ or aims and objects; address of the association has been duly recorded with the concerned registering authority

(b)

The resolution of the governing body has been passed before effecting the changes

(c)

The Bank authorities have been duly informed about change in the designated bank account / opening of Utilisation account

(d)

None of the key members has been appointed in violation of section 12(4) of Foreign Contribution (Regulation) Act 2010 (strike out whichever is not applicable)

Signature of the Chief Functionary

[Name of the Chief Functionary in block letters]

(Seal of the Association)

[Form FC-6A]

[Inserted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

[See rule 9 and 17A]

Darpan ID*** _____

The Secretary to the Government of India, Ministry of

Home Affairs,

Foreigners Division (FCRA Wing)

Major Dhyani Chand National Stadium,

India Gate, New Delhi-110002

***Note: - Furnishing of Darpan ID shall be optional.

Subject: Intimation under rule 9 and rule 17 A of the Foreign Contribution (Regulation) Rules, 2011 to the Central Government regarding Change of name / address within the State in respect of the association granted registration/ prior permission under the Foreign Contribution (Regulation) Act, 2010 (42 of 2010

):

Sir,

I, as an individual/ association/ company hereby submit the following intimation as required under Rule 17A of the Foreign Contribution (Regulation) Rules, 2011:

Change of name and/ or address within the State of the Association

1. FCRA Registration/ Prior Permission number and date of the association:

2. Official telephone number of the association:

3. E-mail address of the association:

4. Telephone/ mobile number of the Chief Functionary of the association:

(To be filled by applicant giving intimation regarding Change of name and/ or address within the State the association)

(i)

Amended/ changed name of the association as recorded with local/ relevant authority:

(ii)

Amended/ changed address within the State of the association as recorded with local/ relevant authority:

(self-certified copy of amendment approved by local/relevant authority to be enclosed)

I hereby affirm that the information furnished above is true and correct and:

(a)

Change of name and/ or address within the State of the association has been duly recorded with the concerned registering authority:

(b)

The resolution of the governing body has been passed before effecting the changes:

(c)

None of the key members has been appointed in violation of sub-section (4) of section 12 of the Foreign Contribution (Regulation) Act, 2010 (42 of 2010

).

(strike out whichever is not applicable).

[Name of the Chief Functionary
(Chairperson/President/Secretary/CEO/MD) in block letters]
(Seal of the Association)
[Form FC-6B]
[Inserted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]
[See rule 9 and 17A]

Darpan ID*** _____

The Secretary to the Government of India, Ministry of Home Affairs,
Foreigners Division (FCRA Wing)
Major Dhyan Chand National Stadium,
India Gate, New Delhi-110002

***Note: - Furnishing of Darpan ID shall be optional.

Subject: Intimation under rule 9 and rule 17 A of the Foreign Contribution (Regulation) Rules, 2011 to the Central Government regarding Change of nature, aims and objects and registration with local/relevant authorities in respect of the association granted registration/ prior permission under the Foreign Contribution (Regulation) Act, 2010 (42 of 2010

):

Sir,

I, as an individual/ association/ company hereby submit the following intimation as required under rule 17A of the Foreign Contribution (Regulation) Rules, 2011:

Change of nature, aims and objects and registration with local/relevant authorities in respect of the association for which registration/ prior permission granted under the above Act

1. FCRA Registration/ Prior Permission number and date of the association:
2. Official telephone number of the association:
3. E-mail address of the association:
4. Telephone/ mobile number of the Chief Functionary of the association:

(To be filled by applicant giving intimation regarding Change of nature, aims and objects and registration with local/relevant authorities in respect of the association which are granted registration/ prior permission under the Foreign Contribution (Regulation) Act, 2010)

New nature, aims and objects and registration with local/relevant authorities:

(i)
Amended/Changed nature of the Association:

(ii)
Amended/Changed aims and objects of the Association:

(iii)
Amended/Changed registration No. with local/relevant authorities:

I hereby affirm that the information furnished above is true and correct; and

(a)

The resolution of the governing body has been passed before effecting the changes:

(b)

Change of nature, aims and objects and registration with local/relevant authorities of the association has been duly recorded with the concerned registering authority:

(c)

None of the key members has been appointed in violation of sub-section (4) of section 12 of Foreign Contribution (Regulation) Act, 2010 (

42 of 2010

).

(strike out whichever is not applicable)

[Name of the Chief Functionary
(Chairperson/President/Secretary/CEO/MD) in block letters]

(Seal of the Association)

[Form FC-6C]

[Inserted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

[See rule 9 and 17A]

Darpan ID*** _____

The Secretary to the Government of India, Ministry of Home Affairs,
Foreigners Division (FCRA Wing)
Major Dhyan Chand National Stadium
India Gate, New Delhi-110002

***Note: - Furnishing of Darpan ID shall be optional.

Subject: Intimation under rule 9 and rule 17A of the Foreign Contribution (Regulation) Rules, 2011 to the Central Government regarding Change of designated FC receipt-cum-utilisation bank account in respect of the association granted registration/ prior permission under the Foreign Contribution (Regulation) Act, 2010 (

42 of 2010

):

Sir,

I, as an individual/ association/ company hereby submit the following intimation as required under rule 17A of the Foreign Contribution (Regulation) Rules, 2011:

Change of designated bank/ branch/ bank account number of designated FC receipt-cum-utilisation bank account

1. FCRA Registration/ Prior Permission number and date of the association:
2. Official telephone number of the association:
3. E-mail address of the association:
4. Telephone/ mobile number of the Chief Functionary of the association:

(To be filled by applicant giving intimation regarding Change of designated bank/ branch of the bank/ account number of designated FC receipt-cum-utilisation bank account for receipt and utilisation of foreign contribution)

Details of the new designated FC receipt-cum-utilisation bank account of the association for receipt and utilization of foreign contribution:.

Name of the Bank

Branch Address

e-mail

IFSC Code

Account No

Date of Account Opening

(1)

(2)

(3)

(4)

(5)

(6)

(self-certified copies of letter from the existing bank and the new bank regarding the change to be enclosed)

I hereby affirm that the information furnished above is true and correct; and:

(a)

The resolution of the governing body has been passed before effecting the changes;

(b)

The Bank authorities have been duly informed about change in the designated FC receipt-cum-utilisation bank account;

(c)

None of the key members has been appointed in violation of section sub-section (4) of section 12 of the Foreign Contribution (Regulation) Act, 2010 (42 of 2010).

(strike out whichever is not applicable)

[Name of the Chief Functionary

(Chairperson/President/Secretary/CEO/MD) in block letters]

(Seal of the Association)

[Form FC-6D]

[Inserted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

[See rule 9 and 17A]

Darpan ID*** _____

The Secretary to the Government of India, Ministry of Home Affairs,

Foreigners Division (FCRA Wing)

Major Dhyani Chand National Stadium

India Gate, New Delhi-110002

***Note: - Furnishing of Darpan ID shall be optional.

Subject: Intimation under rule 9 and rule 17A of the Foreign Contribution (Regulation) Rules, 2011 to the Central Government regarding opening of additional FC-utilisation account in respect of the association granted registration/ prior permission under the Foreign Contribution (Regulation) Act, 2010 (42 of 2010

):

Sir,

I, as an individual/ association/company hereby submit the following intimation as required under rule 17A of the Foreign Contribution (Regulation) Rules, 2011:

Opening of additional FC-utilisation Bank Account for the purpose of utilisation of foreign contribution

1. FCRA Registration/ Prior Permission number and date of the association:

2. Official telephone number of the association:

3. E-mail address of the association:

4. Telephone/ mobile number of the Chief Functionary of the association:

(To be filled by applicant giving intimation of opening of Utilisation Bank Account(s) for the purpose of utilization of foreign contribution)

Name of the Bank

Branch Address

e-mail

IFSC Code

Utilisation Account Number

Date of Account Opening

(1)

(2)

(3)

(4)

(5)

(6)

I hereby affirm that the information furnished above is true and correct and

(a)

the resolution of the governing body has been passed before opening of additional FC-utilisation account;

(b)

the Bank authorities have been duly informed about opening of additional FC-utilisation account;

(c)

none of the key members has been appointed in violation of sub-section (4) of section 12 of the Foreign Contribution

(Regulation) Act, 2010 (
42 of 2010
).

(strike out whichever is not applicable)

[Name of the Chief Functionary

(Chairperson/President/Secretary/CEO/MD) in block letters]

(Seal of the Association)

[Form FC-6E]

[Inserted by Notification No. G.S.R. 199(E), dated 7.3.2019 (w.e.f. 29.4.2011).]

[See rules 9 and 17A]

Darpan ID*** _____

The Secretary to the Government of India, Ministry of Home Affairs,

Foreigners Division (FCRA Wing)

Major Dhyani Chand National Stadium,

India Gate, New Delhi-110002

***Note: - Furnishing of Darpan ID shall be optional.

Subject: Intimation under rule 9 and rule 17A of the Foreign Contribution (Regulation) Rules, 2011 to the Central Government regarding Change in key members in respect of the association granted registration/ prior permission under the Foreign Contribution (Regulation) Act, 2010 (
42 of 2010

);

Sir,

I, as an individual/ association/ company hereby submit the following intimation as required under rule 17A of the Foreign Contribution (Regulation) Rules, 2011:

Change in fifty per cent. or more of the original Key members of the association

1. FCRA Registration/ Prior Permission number and date of the association:

2. Official telephone number of the association:

3. E-mail address of the association:

4. Telephone/ mobile number of the Chief Functionary of the association:

(To be filled by applicant giving intimation regarding change in fifty per cent. or more of the original key members of the association)

Details of all the key members of the association after change in fifty per cent. or more of the original key members, as reported in the application for grant of registration/prior permission/renewal of registration of the association under the Foreign Contribution (Regulation) Act, 2010:

Name

Name of father/ spouse

Nationality

Aadhaar Number*

PAN

Occupation

Designation in the Association

Relationship with other Member(s) of the

Executive Council / Governing body / Office bearers

Contact Details: Office Address; Residential

Address; e-mail address; Landline no.; mobile no.

(1)

(2)

(3)

(4)

(5)

(6)

(7)

(8)

(9)

*Note: - Furnishing of details of Aadhaar number in column (4) shall be optional.

If any of the above is a foreigner (including PIO/OCI card holder), details thereof:

Name

Date and Place of birth

Passport number

Address in the foreign country

Whether a person of Indian origin

PIO/OCI Card Number, if any

If resident in India, date from which residing in

India

(1)

(2)

(3)

(4)

(5)

(6)

(7)

I hereby affirm that the information furnished above is true and correct; and

(a)

the resolution of the governing body has been passed before effecting the changes;

(b)

none of the key members has been appointed in violation of sub-section (4) of section 12 of the Foreign Contribution (Regulation) Act, 2010 (

42 of 2010

).

(strike-out whichever is not applicable)

[Name of the Chief Functionary

(Chairperson/President/Secretary/CEO/MD) in block letters]

(Seal of the Association)

[Proforma 'AA']

[Inserted by Notification No. G.S.R. 659(E), dated 16.9.2019 (w.e.f. 29.4.2011).]

(See rules 9, 12, Forms FC-3A, FC-3B and FC-3C)

[To be executed by each office bearer and key functionary and member individually on non-judicial stamp paper of Rs.10/- and attested by a Notary Public or 1st Class Magistrate]

Affidavit

I, (name of the Chief Functionary / Chairperson/ President/Secretary/ Chief Executive Officer/ Managing Director/office bearer/key functionary/member), son/daughter/wife of ..., resident of, having Aadhaar Number /PAN Card Number / Passport Number / Voter Identity Card Number/ Driving Licence Number as the identity proof, do hereby solemnly affirm on oath that I am the Chief Functionary / Chairperson/ President/Secretary/ Chief Executive Officer/ Managing Director/office bearer/ key functionary/ member (whichever is applicable) of (name of the applicant organisation), having its registered office at , and I have read and understood the provisions of the Foreign Contribution (Regulation) Act, 2010 (

42 of 2010

) and confirm that all the conditions as stipulated in sub-section (4) of section 12 of the said Act are fulfilled.

2. I also undertake to report to the Secretary to the Government of India, Ministry of Home Affairs, Foreigners Division (Foreign Contribution Regulation Act Wing) about any violation of the provisions of sub-section (4) of section 12 of the Foreign Contribution (Regulation) Act, 2010 by the applicant organisation or any of its members or office bearers or key functionaries that comes to my knowledge.

3. I also understand that submission of any false or misleading information shall be punishable under the applicable law.

Place: _____

Date: _____

Deponent

Verification

I,, above named deponent do hereby verify that the contents of the aforesaid paragraphs 1 to 3 are true to the best of my knowledge and nothing has been concealed therefrom. Verified at on this theday of

Place: _____

Date: _____

Deponent

Related AI tags, queries and research notes

Translation